

tions. There is a clear development plan for Mumbai, which outlines spaces for development and those for open areas, but the system lacks the political will to implement its policies.

According to the state Government's town planning statistics, Mumbai should have four acres of open space per 1,000 people in the city, but in reality all land reserved for open spaces, parks, hospitals and schools has been encroached by illegal slums. There is only 0.03 acres of open space per 1,000 people in Mumbai today. Even green areas and marsh land have been shown as slums by real estate firms to acquire more land in the name of rehabilitating slum dwellers. If squatters are occupying land meant for roads, then hawkers in the city are everywhere: from pavements to railway stations.

Conveners of the organisation Citispace, Neera Punj and Nayana Kathpalia, are fighting the Government to prevent slum rehabilitation schemes on reserved land and to get the BMC to adhere to the Supreme Court guidelines of 1985 on hawkers, which had originally been proposed by the corporation itself. According to official statistics, Mumbai only has 15,000 hawkers; a 1998 survey puts the number of hawkers at 1.2 lakh.

Punj and Kathpalia filed a writ petition against the BMC and state Government for not implementing the SC guidelines on illegal hawking. The Municipal Corporation for Greater Mumbai has decided to go back to the drawing board and invite public opinion on hawking pitches. As per law, hawkers have to maintain a stipulated distance from railway stations, schools and public spaces, but that is hardly the case.

If Mumbai is anxious for public spaces and amenities, the hinterland is angered by the furtive policy of the Government to make liquor out of grain. In a rather shocking ruling, the Bombay High Court pulled up the state Government for enacting a reg-

Seeking Justice



“If the Government was working, citizens wouldn't be running to courts. PILs police the Government.”

V.P. PATIL, *Advocate*



“The reason for PILs is that the executive regards it their unbridled prerogative to transgress laws.”

Y.P. SINGH, *ex-IPS officer and advocate*



“PILs are the result of faulty democracy where the elected look after only the interests of their voters.”

GERSON DA CUNHA, *Co-founder, AGNI*

ulation on allowing distilleries to make liquor from grain.

All the licences for such distilleries have been awarded to politicians like former chief minister Vilasrao Deshmukh's son Amit Deshmukh and Pankaja Munde (Gopinath Munde's daughter). The Opposition is not raising a stink in the Assembly and Parliament as it also gains from state policies. After a PIL filed by Chetan Kamble in Bombay High Court against state of Maharashtra seeking a stay against subsidies to grain-liquor manufacturing units, the division bench of acting Chief Justice J.N. Patel and Justice B.R. Gawai asked: “Do you have so much funds to spend on these people (the distillery owners)? What is an essential commodity for you: liquor or food grains?”

PILs also come with their own pitfalls as judges are now getting into policy making as the Government is only looking after vested interests. In comparison, courts are corruption-free and far more decisive than the Government. The Government does not encourage dialogue with the public on policy making or legislation. A classic case has been that of the Mumbai Metro Project, which is slated to go overground in most parts of the city, creating chaos on roads. The Government has only encouraged private transport instead of enhancing the public transport system despite 90 per cent people using it. Shiraz Rustomjee, a Mumbai lawyer, who has been fighting many PILs on a *pro bono* basis, says: “The trouble is that the law is geared towards giving benefits instead of solving problems. People don't have faith in the integrity of policy making process.”

Gerson da Cunha, an activist and co-founder of AGNI, blames it on “faulty democracy in the country where nearly 50 per cent of the electorate does not vote, and the elected representatives end up looking after the narrow interests of those who have voted them to power”. If the Government wants to salvage its image as a lawmaker, it will have to stop focusing on divisive politics and look at key issues of the masses. ■